abuse capturing headlines, it is no surprise that the clamour for strict laws or regulations to curb abuse have taken centre stage. The positive use of AI runs the risk of being lost in this noise. Clearly, a legislative tightrope awaits us—one that calls for balancing innovation, growth and harnessing economic benefits with combating crimes or violations.

The European Union's AI Act—over two years in the making and realised in December 2023—represents one of the first standalone legislations for this domain. Touted as a comprehensive legislation for AI, the Act takes a risk-based approach to ban what are listed as unacceptable risk models and regulate high-risk categories. Those perceived to be low risk are left alone for self-regulation. The US is evaluating two federal laws for combating deepfakes and misinformation campaigns with the DEEPFAKES Accountability Act and PROTECT Act. Singapore's Protection from Online Falsehoods and Manipulation Act 2019, as the name suggests, combats misinformation and disinformation campaigns intended to harm inter alia the interests of the nation. Several state laws in the US as well as the Singapore law focus specifically on disinformation campaigns impacting elections. China has made spreading of false or misleading information, fabricating facts, or knowingly spreading rumours to cause serious harm to society a punishable offence. South Korea penalises deepfake-enabled crimes that harm public interest. Estonia's Information Systems and Communications Market Act makes inciting hatred, disseminating false information or fabricating deepfakes criminal offences.

The above instances of AI legislations across jurisdictions are but the tip of the proverbial iceberg and address only some aspects of AI-induced abuse. The infamous Uber self-driving car crash that killed a person in Arizona in 2018 or Tesla car crashes have emphasised the need for human oversight even of autonomous cars—the phrase 'autonomous vehicles' still covers cars with a 'human element' in the form of a safety backup driver, and hence acts like playing video games with the car on autopilot can invite cases of driver negligence. Regulations in countries such as Germany lay down guidelines for non-discrimination by the AI models in autonomous cars, including not deciding based on colour or gender when faced with either/or ethical dilemmas involving an inevitable victim. The UK has mandated the need for insurance for autonomous vehicles. The World Economic Forum's guidance document for policymakers for these vehicles is in effect a 'virtual driving licence' framework that will help regulators formulate laws.

AI bias could cause harm in use-cases, including in predictive policing at the stage of investigation or predictive sentencing by courts (such as through the use of the COMPAS AI system by US courts) or even at the stage of employment. Social engineering and manipulation, as in the Cambridge Analytica case, which have been described as the use of "data analytics to sway the electorate [relying] on social network users' participation in their own psychological manipulation", are other risks already identified and requiring legal ring-fencing.

India & AI Regulation

As technology evolves, so do the use-cases and risks. Often, there is concern that with technology growing at warp speed, law would find it difficult to keep pace. This may, however, not reflect reality. Existing laws in India would, through strict or purposive interpretation, apply to evolving scenarios and may be applied to regulate.

For instance, criminal laws under the Indian Penal Code (IPC), 1860, which would now stand replaced by the Bharatiya Nyaya Sanhita (BNS), 2023, contain several provisions that can be used to combat deepfakes that harm individuals, their dignity or privacy. The extant Information Technology Act, 2000 (as amended), and rules framed thereunder—in particular the Intermediary Guidelines of 2021—address deepfakes or manipulated or forged imagery and misinformation amongst other harms and provisions thereunder such as Sections 66C (identity theft), 66D (cheating by personation), 67 (obscene content), 67A (sexually explicit content) and 67B (child pornography) IT Act may be invoked based on the facts of the case. Extortion or blackmail provisions

TAKEAWAYS

- The proliferation of AI raises regulatory challenges. While new laws are evolving, existing provisions may be applied
- Machine bias is a worry as AI becomes a tool for policing and in courts
- Intellectual property case decisions from the US and other jurisdictions will impact AI innovation and adaptation